



CHAPTER ix.

An Act to extend the limits for the supply of water by the mayor aldermen and citizens of the city of Gloucester in the county of the city of Gloucester and to make further provision with regard to their water undertaking to provide for the inclusion of members of the council of the said city in the standing joint committee of the quarter sessions and the council of the administrative county of Gloucester and for other purposes.

[10th December 1945.]

WHEREAS the city of Gloucester in the county of the city of Gloucester (hereinafter called "the city") is a city and county borough under the government of the mayor aldermen and citizens thereof (hereinafter called "the Corporation"):

And whereas the limits within which the Corporation might supply water were extended by section 79 (Extension of water limits of Gloucester Corporation) of the Cheltenham and Gloucester Joint Water Board &c. Act 1936 to the extent there mentioned and it is expedient further to extend the limits of the Corporation for the supply of water to redefine those limits and to make further provision with regard to their water undertaking:

26 Geo. 5. &
1 Edw. 8.
c. cxxix.

And whereas the police establishments of the administrative county of Gloucester and of the city are consolidated and it is expedient that the constitution of the standing joint committee of the quarter sessions and the council of the administrative county of Gloucester be modified so as to permit of the inclusion therein of members of the council of the city:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

23 & 24 Geo. 5.
c. 51. And whereas in relation to the promotion of the Bill for this Act the requirements of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

Short title. 1. This Act may be cited as the Gloucester Corporation Act 1945.

Division of Act into Parts. 2. This Act is divided into Parts as follows (that is to say):—

Part I.—Preliminary.

Part II.—Water.

Part III.—Representation on standing joint committee.

Part IV.—Finance and miscellaneous.

Interpretation. 3. In this Act unless the subject or context otherwise requires—

“ The city ” means the city of Gloucester in the county of the city of Gloucester;

“ The Corporation ” means the mayor aldermen and citizens of the city acting by the council;

“ The general rate fund ” means the general rate fund of the city;

“ The Act of 1933 ” means the Local Government Act 1933;

26 Geo. 5. & 1. Edw.
8. c. 49.

“ The Act of 1936 ” means the Public Health Act 1936;

1 & 2 Geo. 5.
c. xcii.

“ The Act of 1911 ” means the Gloucester Corporation Act 1911;

“ The Minister ” means the Minister of Health;

“ The existing water limits ” means the limits within which the Corporation are authorised to supply water immediately before the passing of this Act;

“ The water limits ” means the limits within which the Corporation are for the time being authorised to supply water;

“ The scheduled agreement ” means the agreement set forth in the Second Schedule to this Act.

PART II.

WATER.

4.—(1) The limits within which the Corporation may supply water are hereby extended so as to include the areas which are described in Part I of the First Schedule to this Act. Extension and redefinition of water limits.

(2) Accordingly the limits for the supply of water by the Corporation shall (until they are altered by any subsequent Act or Order) be and include the areas which are described in Part II of the said First Schedule.

(3) (a) Subject to the provisions of this Part of this Act the Corporation shall have and may exercise within the areas mentioned in subsection (1) of this section all and the like powers privileges and authorities for and in relation to the supply of water and be subject to all and the like duties and obligations in respect thereof as they now have and are subject to within the existing water limits.

(b) Without prejudice to the generality of the provisions of paragraph (a) of this subsection section 140 (For protection of River Severn Catchment Board) of the Cheltenham and Gloucester Joint Water Board &c. Act 1936 shall apply and have effect with respect to the exercise by the Corporation of the powers of this Part of this Act as if the said section were re-enacted in this Act and in terms made applicable thereto and as if the expression " authorised work " in the section meant a work authorised by this Part of this Act to be executed by the Corporation.

(4) The Corporation shall repay to the Great Western Railway Company or the London Midland and Scottish Railway Company respectively any additional expense which those companies or either of them may reasonably incur in widening altering reconstructing repairing or maintaining their railways or other works in pursuance of any powers existing at the passing of this Act by reason of the existence of the works of the Corporation laid or executed under the powers of this section upon across over or under the same.

(5) The Corporation shall repay to the Sharpness Docks and Gloucester and Birmingham Navigation Company any additional expense which that company may reasonably incur in widening altering reconstructing repairing or maintaining the Gloucester and Sharpness Canal or other works belonging to them in pursuance of any powers existing at the passing of this Act by reason of the existence of the works of the Corporation laid or executed under the powers of this section on across over or under the said canal or other work of that company.

PART II.
—*cont.*62 & 63 Vict.
c. clviii.

(6) The parishes of Alkington Berkeley Ham and Stone Hamfallow and Hinton in the rural district of Thornbury in the county of Gloucester shall cease to form part of the limits for the supply of water by the West Gloucestershire Water Company authorised by the West Gloucestershire Water Acts 1884 to 1939 and section 4 (Extension of limits of supply) of the West Gloucestershire Water Act 1899 shall be read and have effect accordingly.

Power to lay
connecting
mains.
10 & 11 Vict.
c. 17.

5. For the purpose of conveying water from one part of the water limits to another part thereof the Corporation may exercise as regards any street outside the water limits the powers conferred upon them by the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes as if such street were within the water limits but nothing in this section shall authorise the Corporation to supply water beyond such limits.

Saving for Water
Act 1945.
8 & 9 Geo. 6. c. 42.

6. This Act shall be deemed to have become law before the coming into operation of the Water Act 1945.

Powers in
relation to
water mains.

7.—(1) Subject to the provisions of this Act the Corporation shall have and may exercise the powers which a local authority who supply water under the Act of 1936 would have under section 119 of that Act with respect to the carrying of water mains within and without their district and for the purposes thereof the water limits shall be deemed to be their district.

(2) Section 17 (Powers in relation to water mains) of the Act of 1911 is hereby repealed.

For protection
of Great
Western and
London
Midland and
Scottish
Railway
Companies.

8. The following provisions for the protection of the Great Western Railway Company and the London Midland and Scottish Railway Company (in this section jointly and severally referred to as "the railway company") shall unless otherwise agreed in writing between the Corporation and the railway company apply and have effect:—

(1) Except in cases of emergency arising from defects in existing pipes plant or works the roadway or footpath of a street or bridge which is under the control or management of or maintainable by the railway company shall not be broken open without their consent but that consent shall not be unreasonably withheld and any question whether or not consent is unreasonably withheld shall be referred to and determined by the Minister:

(2) Where the Corporation propose to break open the roadway or footpath of any length of street which forms a level-crossing or crosses over or under a

railway or other works of the railway company and which is not under the control or management of the railway company they shall give to the railway company the like notice as they are required by section 30 of the Waterworks Clauses Act 1847 to give to the persons having the control or management of the street and if and in so far as the proposed work is likely to affect the structure of any bridge or other works belonging to the railway company shall carry out the work to the reasonable satisfaction of the engineer of the railway company in accordance with plans approved by him Any dispute arising under this subsection between the Corporation and the railway company shall be referred to an arbitrator to be appointed in default of agreement by the President of the Institution of Civil Engineers.

PART II.
—cont.

9. Section 57 (For protection of Gloucester County Council) of the West Gloucestershire Water Act 1934 shall extend and apply for the protection of the county council of the administrative county of Gloucester with respect to the exercise in or affecting any highway or bridge (as respectively defined in that section) in the parishes of Alkington Berkeley Ham and Stone Hamfallow and Hinton in the rural district of Thornbury in the said county of any of the powers of this Part of this Act as if that section were re-enacted in this Act with the substitution of " the Corporation " for " the Company " and with any other necessary amendments.

For protection
of Gloucester-
shire County
Council.
24 & 25 Geo. 5.
c. xxxvii.

10. Section 57 (For protection of Gloucester County Council) of the West Gloucestershire Water Act 1934 shall extend and apply for the protection of the Minister of War Transport with respect to the exercise in or affecting any trunk road or bridge in the parishes of Alkington Berkeley Ham and Stone Hamfallow and Hinton in the rural district of Thornbury vested in the said Minister of any of the powers of this Part of this Act as if the said section were re-enacted in this Act with the substitution of " the Corporation " for " the Company " and with any other necessary amendments.

For protection
of Minister of
War
Transport.

11. For the purposes so far as applicable of the provisions of the Town and Country Planning Acts 1932 and 1943 and the Town and Country Planning Act 1944 and of any order scheme or regulation made under those Acts or any enactment repealed by those Acts and for the time being in force this Act shall be deemed to have become law before the commencement of the said Town and Country Planning Acts 1932 and 1943 and the Town and Country Planning Act 1944.

Saving for
town and
country
planning.
22 & 23 Geo. 5.
c. 48.
6 & 7 Geo. 6.
c. 29.
7 & 8 Geo. 6.
c. 47.

PART II.

—cont.

Confirmation
of scheduled
agreement.

12. The scheduled agreement is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly subject to such modifications (if any) as may be agreed between the said parties in writing. Provided that no such modification shall be of such a character as to affect the rights or interests of any persons other than the said parties or shall be inconsistent with the provisions of this Act.

PART III.

REPRESENTATION ON STANDING JOINT COMMITTEE.

Modification of
constitution of
standing joint
committee.

13.—(1) The standing joint committee of the quarter sessions and the council of the administrative county of Gloucester (in this section called "the standing joint committee") shall include in addition to the equal number of justices appointed by the quarter sessions and of members of the council of the said administrative county appointed by that council such number of members of the council of the city as may from time to time be agreed between the standing joint committee (excluding any members added thereto in pursuance of this section) and the council of the city or in default of agreement such number of members of the council of the city as may be directed by a Secretary of State and the members of the council of the city so to be added to the standing joint committee shall be appointed by the council of the city:

Provided that the members of the council of the city so added to the standing joint committee may vote only on matters relating to the police.

(2) The provisions of this section shall remain in force only so long as the police establishments of the said administrative county and of the city are consolidated.

51 & 52 Vict.
c. 41.

(3) Nothing in this section shall affect the provisions of section 30 of the Local Government Act 1888 or any other enactment as to the payment of the expenditure of the standing joint committee out of the county fund of the said administrative county of Gloucester.

(4) Section 128 (Modification of constitution of standing joint committee) of the Cheltenham and Gloucester Joint Water Board &c. Act 1936 is hereby repealed.

PART IV.

FINANCE AND MISCELLANEOUS.

Power to
borrow.

14.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of

any sanctioning authority such sums as they may require for and in connection with the payment of the costs charges and expenses of obtaining this Act and shall pay off all moneys so borrowed within such period as the Corporation may determine not exceeding five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under Part IX of the Act of 1933 and the period fixed for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purposes of the said Part IX.

(3) It shall not be lawful to exercise the powers of borrowing conferred by this Act otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945.

8 & 9 Geo. 6.
c. 18.

15. Section 328 (Powers of Act to be cumulative) of the Act of 1936 shall have effect as if it were re-enacted in this Act and in terms made applicable thereto.

Application of
provision of
Public Health
Act 1936.

16. Nothing in this Act affects prejudicially any estate right Crown rights. power privilege or exemption of the Crown.

17. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of money to be borrowed under this Act for that purpose.

Costs of Act.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

PART I. AREAS COMPRISING ADDED WATER LIMITS.

In the administrative county of Gloucester—

In the rural district of Gloucester—

The parish of Newnham.

In the rural district of Newent—

The parishes of Corse and Staunton.

In the rural district of Thornbury—

The parishes of Alkington Berkeley Ham and Stone Ham-fallow and Hinton.

PART II. WATER LIMITS.

The city.

In the administrative county of Gloucester—

In the rural district of Cheltenham—

So much of the parish of Badgeworth as lies to the south of a straight line commencing on the western boundary of the said parish at the point where that boundary is intersected by the boundary between the parishes of Brockworth and Churchdown (in the rural district of Gloucester) and thence proceeding in a south-easterly direction to the eastern boundary of the said parish of Badgeworth in the road from Cheltenham to Painswick and terminating at the point on that boundary where that road is intersected by the road from Little Shurdington (at or near Ordnance Bench Mark 222.2);

The parish of Great Witcombe.

In the rural district of East Dean—

The parishes of Churcham and Huntley.

In the rural district of Gloucester—

The parishes of Arlingham Ashleworth Barnwood Brockworth Brookthorpe Churchdown Elmore Frampton-on-Severn Fretherne-with-Saul Hardwicke Harescombe Haresfield Hempsted Highnam Hucclecote Longford Longlevens Longney Maisemore Minsterworth Moreton Valence Newnham Quedgeley Sandhurst Standish Twigworth Upton Saint Leonards Westbury-on-Severn Wheatenhurst and Wotton Vill.

In the rural district of Newent—

The parishes of Corse Dymock Hartpury Kempley Newent Oxenhall Pauntley Rudford Staunton Taynton Tibberton and Upleadon.

In the rural district of Thornbury—

The parishes of Alkington Berkeley Ham and Stone Ham-fallow and Hinton.

THE SECOND SCHEDULE.

SCHEDULED AGREEMENT.

AN AGREEMENT made the twenty-sixth day of April one thousand nine hundred and forty-five between THE MAYOR ALDERMEN AND CITIZENS OF THE CITY OF GLOUCESTER in the county of the city of Gloucester (hereinafter called "the Corporation") of the one part and THE RURAL COUNCIL (as hereinafter defined) of the other part.

WHEREAS the Corporation who are already supplying water in certain parishes in parts of the district (as hereinafter defined) are promoting a Bill in the present session of Parliament entitled "the Gloucester Corporation Bill" (hereinafter called "the Bill") whereby it is proposed (inter alia) to extend the limits for the supply of water by the Corporation so as to include therein certain other parishes in parts of the district (as so defined).

And whereas the Corporation have agreed with the Rural Council to make available a supply of water in the district (as so defined) upon the terms and in accordance with the provisions of this agreement.

Now it is hereby agreed and declared as follows:—

1. In this agreement "the Rural Council" means in relation to so much of the East Dean Rural District as is within the limits for the supply of water by the Corporation upon the passing of the Bill into law the East Dean Rural District Council in relation to so much of the Gloucester Rural District as is within the limits for the supply of water by the Corporation upon the passing of the Bill into law the Gloucester Rural District Council in relation to so much of the Newent Rural District as is within the limits for the supply of water by the Corporation upon the passing of the Bill into law the Newent Rural District Council and in relation to so much of the Thornbury Rural District as is within the limits for the supply of water by the Corporation upon the passing of the Bill into law the Thornbury Rural District Council "the district" means so much of the East Dean Rural District the Gloucester Rural District the Newent Rural District or the Thornbury Rural District as is within the limits for the supply of water by the Corporation upon the passing of the Bill into law.

2. Subject as hereinafter provided the Rural Council may at any time after the passing into law of the Bill (or so much thereof as relates to the subject-matter of this agreement) and from time to time require the water mains of the Corporation to be extended so as to provide a supply of water in any part of the district (as hereinbefore defined).

3. A requirement for any such extension of mains shall be in writing addressed to the Corporation and shall define the area in which and properties to which it is intended to apply and shall be accompanied by a statement of the gross and rateable values of such properties the estimated consumption of water and such particulars relating to anticipated future development in such area as the Rural Council can reasonably give. A separate requirement shall be made in respect of each such area.

2ND SCH.
—cont.

4.—(a) The Corporation shall as soon as reasonably possible after the receipt of the requirement prepare and submit to the Rural Council a proposal for extending their mains (including the laying of any mains in substitution for existing mains) together with a plan and a description and an estimate of the cost of the mains which the Corporation consider necessary in order to provide the supply of water required and to provide for any additional user of the same which can reasonably be anticipated.

(b) The Rural Council may thereupon approve the proposal and estimate of the Corporation or withdraw their requirement or may if they so decide notify the Corporation that part only of the proposal shall be proceeded with.

(c) If the Rural Council are of opinion that a proposal and estimate of the Corporation are either in whole or in part excessive as to capacity or cost as the case may be and the Rural Council and the Corporation are unable to agree the capacity or the cost as the case may be the Rural Council may (by notice in writing to the Corporation) require the matter to be settled by arbitration as hereinafter provided. In such event the arbitrator shall take into consideration any additional user of the main or mains in question which can reasonably be anticipated.

5. The Corporation shall as soon as practicable after the approval by the Rural Council in whole or in part of the proposal of the Corporation (or the award of the arbitrator as the case may be) and subject to the consent of the sanctioning authority to the borrowing by the Corporation of such sum as may be required for the purpose proceed to lay and complete the main or mains and shall thereafter maintain the same as part of the water undertaking of the Corporation.

6. If the cost of the main or mains as laid and completed shall exceed the estimated cost the question of whether the mains have been laid or constructed in a reasonable manner shall if the Rural Council so require be referred to and determined by arbitration as hereinafter provided. The Corporation shall if so required furnish the Rural Council with full details showing how the cost of the mains is arrived at. If the arbitrator shall find that the cost is excessive he shall determine the expenditure in respect of which the guarantee hereinafter referred to shall be given.

7.—(1) The Rural Council shall guarantee the payment to the Corporation annually from the date on which any main or mains laid under this agreement becomes or become available for use and during the period specified in the instrument of the sanctioning authority within which the sum to be borrowed by the Corporation in respect of such main or mains shall be repaid or a period of thirty years if the said instrument is not issued in respect of the cost (as agreed or determined by arbitration as hereinbefore provided) of any such main or mains the laying of which is commenced after the passing into law of the Bill (or so much thereof as relates to the subject-matter of this agreement) a sum equal to the annual loan charges (including sinking fund if any) thereon calculated on the basis hereinafter provided together with a sum equal to four and one-quarter per centum of the cost (agreed or determined as aforesaid) of the said main or mains.

(2) The annual loan charges referred to in this clause shall be calculated on the basis of a rate of interest equivalent to the rate at which the Rural Council could (at the date of the consent of the sanctioning authority to the borrowing by the Corporation or if there is no such consent the date on which the expenditure is incurred) have borrowed money from the Public Works Loan Commissioners subject to repayment within the period specified in the instrument of the sanctioning authority or a period of thirty years if the said instrument is not issued.

8.—(i) Any revenue received by the Corporation in any year from consumers for supplies of water afforded by the mains hereinbefore referred to and any annual grants received by the Corporation towards the payment of interest and sinking fund in respect of the cost of the said mains shall be set off against the sums the payment of which is guaranteed by the Rural Council.

(ii) Any annual grants received by the Rural Council in respect of the cost of the said mains shall be paid to the Corporation and shall be set off as provided in this clause.

(iii) Any grants other than annual grants received by the Corporation or the Rural Council in respect of the cost of any main or mains laid under this agreement shall be retained by or paid to the Corporation as the case may be and thereafter for the purpose of the calculation of the annual loan charges referred to in clause 7 hereof the cost of any such main or mains shall be deemed to be a sum or sums equal to the difference between any such grants as are referred to in this sub-clause and the cost (as agreed or determined by arbitration as hereinbefore provided) of the said main or mains but the sum equal to four and one-quarter per centum of the cost of the said main or mains also referred to in clause 7 hereof shall unless the Corporation and the Rural Council agree to the contrary continue to be calculated on the actual cost (agreed or determined as aforesaid) of the said main or mains.

9. The cost of the said mains shall include the cost of providing all plant and materials for and the cost of laying the mains and maintaining the same for twelve months after completion and the cost of reinstating the trenches and road surfaces and of maintaining the same for twelve months after completion together with a sum of five per centum thereon for administrative expenses and supervision of the work and shall also include the cost of wayleaves (if any) and of preparing any necessary contracts.

10. If the Rural Council require a supply of water to be afforded to any area within the district (as hereinbefore defined) to which by reason of its elevation the Corporation are not bound to afford a supply the Corporation shall nevertheless afford such a supply on terms to be agreed between the Rural Council and the Corporation or failing agreement determined by arbitration as hereinafter provided. Provided that such terms shall include the addition to the cost of the mains in respect of which the payment to the Corporation of

2ND SCH.
—cont.

a sum is to be guaranteed by the Rural Council of the cost of installing operating and maintaining any pumping plant which shall be necessary for the purpose of affording the supply.

11. (a) The Corporation shall be at liberty at any time to extend any main or mains laid under the provisions of this agreement or to lay any branch main therefrom.

(b) Before commencing to extend any such main or mains or to lay any branch main therefrom the Corporation shall (except in case of urgency) give to the Rural Council one month's notice in writing stating the length and estimated cost of the extension or of the branch main and the purpose for which it is intended.

(c) The Rural Council shall be entitled (within one month of the receipt of such notice) to require that any such extension or branch main shall be deemed to be a main laid in pursuance of a requirement of the Rural Council in accordance with this agreement.

12. Any question difference or failure to agree arising under this agreement shall be referred to and determined by a single arbitrator to be appointed failing agreement on the application of either party after notice in writing to the other by the Minister of Health and subject as aforesaid the provisions of the Arbitration Act 1889 or any statutory modification thereof shall apply to any such reference and determination.

13. The scheduled agreement referred to in section 80 of the Cheltenham and Gloucester Joint Water Board &c. Act 1936 is hereby revoked as from the date on which the Bill (or so much thereof as relates to the subject-matter of this agreement) is passed by Parliament without prejudice to anything duly done or suffered thereunder.

14. This agreement is subject to statutory authority sanctioning the same or enabling the same to be carried into effect and sanctioning the said extension of limits for the supply of water by the Corporation being obtained by means of the Bill and also to:—

(i) The Bill (or so much thereof as relates to the subject-matter of this agreement) being passed by Parliament; and

(ii) Such alterations as may be made by Parliament therein and in the Bill but in the event of either House of Parliament making any material alteration in this agreement or in the Bill to the prejudice of any of the parties hereto the Corporation or the Rural Council may upon giving notice in writing to the other withdraw from this agreement and in such case or if the Bill shall not be passed this agreement shall be void and of no effect and in the event of either House of Parliament requiring that any restriction or condition be imposed upon the Corporation or the Rural Council in relation to the subject-matter of this agreement to which either party shall be unwilling to submit it shall be lawful for either party by notice in writing to the other at any time to cancel this agreement.

In witness whereof the parties hereto have caused their common seals to be hereunto affixed the day and year first hereinbefore written.

2ND SCH.
—cont.

The common seal of THE MAYOR ALDERMEN AND CITIZENS OF THE CITY OF GLOUCESTER in the county of the city of Gloucester was hereunto affixed in the presence of—

H. G. WILLIAMS
Mayor

L. O. NEED
Town clerk.

L.S.

The common seal of the EAST DEAN RURAL DISTRICT COUNCIL was hereunto affixed in the presence of—

T. W. LITTLE
Chairman.

M. F. CARTER
Clerk.

L.S.

The common seal of the GLOUCESTER RURAL DISTRICT COUNCIL was hereunto affixed in the presence of—

W. T. NICHOLLS
Chairman.

W. J. KNIGHT
Clerk.

L.S.

The common seal of the NEWENT RURAL DISTRICT COUNCIL was hereunto affixed in the presence of—

A. W. SOUTHALL
Chairman.

LESLIE J. SLADE
Clerk.

L.S.

The common seal of the THORNBURY RURAL DISTRICT COUNCIL was hereunto affixed in the presence of—

J. H. COOKE
Chairman.

J. L. JUDD
Clerk.

L.S.

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